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THE CONSTITUTION OF KENYA

THE ELECTIONS ACT

(No. 24 of 2011)

THE ELECTIONS (GENERAL) REGULATIONS, 2012

BY-ELECTIONS FOR MEMBER OF SENATE-BARINGO COUNTY, MEMBERS OF THE NATIONAL ASSEMBLY FOR BANISSA, KASIPUL, MAGARINI, MALAVA, MBEERE NORTH AND UGUNJA CONSTITUENCIES AND MEMBER OF KABUCHAI/CHWELE COUNTY ASSEMBLY WARD IN BUNGOMA COUNTY SCHEDULED TO BE HELD ON 27TH NOVEMBER, 2025.

IN EXERCISE of powers conferred by Articles 84, 85, 88 (4), 97 (1) (a), 98 (1) (a), 99, 103 (1) (a) and (d), 101 (4), 177 (1) (a) and 194 (1) (a) of the Constitution of Kenya, sections 2, 5 (b), 13 (3), 16, 19, 24, 32, 33, 38, 43 (5A) and 74 of the Elections Act, 2011 and Regulations 11 (4) and (6), 12 (1), 13B, 14, 15, Parts V, VI, VIII and IX and 98 of the Election (General) Regulations, 2012 the Independent Electoral and Boundaries Commission gives notice that:

- (a) Following declaration of vacancies that occurred in the offices of Member of Senate Baringo County, Members of the National Assembly for Banissa, Kasipul, Magarini, Malava, Mbeere North and Ugunja constituencies, issued by the respective Speakers, there shall be by-elections for Member of Senate- Baringo County, Members of the National Assembly for Banissa, Kasipul, Magarini, Malava, Mbeere North and Ugunja Constituencies and Kabuchai/Chwele County Assembly Ward in Bungoma County on Thursday, 27th November, 2025.
- (b) Each political party intending to participate in the by-elections shall submit the names and specimen signatures of the authorised persons on or before Wednesday 17th September, 2025.
- (c) Each political party intending to participate in the by-elections shall submit the names of the persons contesting in a party primary and the date of the party primary on or before Wednesday 17th September, 2025.
- (d) A public officer who intends to contest in the by-elections shall resign from public office within seven (7) days of this notice.

- (e) The Commission shall publish, in the Gazette, the names of the persons contesting in a party primary and the date of the party primary within seven (7) days of receipt of the names of the candidates.
- (f) Candidates intending to participate in the by-elections as independent candidates shall not have been members of any political party at least three (3) months immediately before the date of the by-elections.
- (g) A political party intending to present candidates in the by-elections shall, after its party primaries resolve all intra-party disputes and submit the list of persons nominated to contest in the by- elections to the Commission on or before Thursday, 2nd October, 2025.
- (h) Political parties intending to present candidates in the by-elections through indirect nominations shall submit the list of persons nominated to contest in the by- elections to the Commission on or before Thursday, 2nd October, 2025.
- (i) Candidates intending to participate in the by-elections as independent candidates shall submit their names and symbols that they intend to use during the by-elections for purposes of nomination of independent candidates to the Commission on or before Wednesday 17th September, 2025.
- (j) The Commission shall publish in the Gazette, the names and symbols of persons intending to contest in the by-elections as independent candidates at least fourteen (14) days before the nomination day.
- (k) The days for the nomination (registration) of political party and independent candidates for the by-elections shall be on Wednesday, 8th October, 2025 and Thursday 9th October, 2025 and the nomination papers shall be delivered by the candidates to the respective Returning Officer between the hours of eight o'clock in the morning and one o'clock in the afternoon and between the hours of two o'clock and four o'clock in the afternoon at the place designated by the Commission.
- (l) Disputes relating to or arising from nominations shall be determined within ten (10) days of the lodging of the dispute with the Commission in any event not later than Friday, 17th October, 2025.
- (m) The campaign period for purposes of the Thursday 27th November, 2025 by-elections shall commence on Wednesday, 8th October, 2025 and cease on Monday 24th November, 2025 being 48 hours before the By-Election Day.

- (n) The Campaign time shall run from 7.00 a.m. to 6.00 p.m. each day during the campaign period
- (o) Political parties and candidates shall appoint and submit the names of their Election Agents to the Commission on or before Tuesday 11th November, 2025.
- (p) For purposes of the 27th November, 2025 by-elections, the Commission shall use the certified Register of Voters published on 21st June, 2022.
- (q) If the elections are contested, the poll will take place on the Thursday 27th November, 2025.

NOTES:

1. The attention of candidates and persons subscribing nomination papers is drawn to the provisions of Parts V, VI, VIII and IX of the Election (General) Regulations, section 13 (2) and the First Schedule to the Leadership and Integrity Act, 2012 and Chapter Six of the Constitution of Kenya.

2. Every political party, candidate and every person who participates in the election shall subscribe to and observe the Electoral

Code of Conduct set out in the Second Schedule to the Elections Act, 2011.

3. A person guilty of an election offence will be liable to the penalties imposed by the Election Offences Act, 2016, the disqualifications imposed thereof and the Constitution of Kenya.

4. The attention of candidates and political parties is drawn to the provisions of section 43 (5A) of the Elections Act, 2011, on resignation of public officers.

5. The attention of candidates is drawn to the provisions of Section 26 of the Elections Act, 2011, on public fundraising or harambee.

6. The attention of Political Parties, Candidates and every person who participates in the election is drawn to Section 2 of the Elections Act, 2011 on the Campaign Period.

Dated the 11th August, 2025.

ERASTUS EDUNG ETHEKON,
Chairperson,
Independent Electoral and Boundaries Commission.